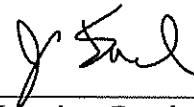


FIRST ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Nancy M. Slater, Department Advocate's Office, October 18, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-24595 against Detective Roberto Pagan, Tax Registry No. 946089. This case was conferenced on September 26, 2023, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of a Command Discipline Schedule A and the total forfeiture of five (5) vacation days, after Detective Roberto Pagan accepted the findings of substantiation of the allegations contained in the Charges and Specifications dated January 27, 2022. Charges and Specifications are dismissed for plea purposes.



Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.
2022-24595BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE DT3	SURNAME, PAGAN	FIRST ROBERTO	M.I. C	COMMAND WARRANT SECTION
SHIELD NO. 1731	TAX REGISTRY NO. 946089	SOCIAL SECURITY NO.	DATE APPOINTED 01/07/2008	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL [X]
1 . Detective Roberto Pagan, on or about January 21, 2020, at approximately 0500, while assigned to the Warrants Section and on duty, in the vicinity of § 87(2)(b) Richmond County, abused his authority as a member of the New York City Police Department, in that he threatened to arrest § 87(2)(b) without sufficient legal authority.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Detective Roberto Pagan, on or about January 21, 2020, at approximately 0500, while assigned to the Warrants Section and on duty, in the vicinity of § 87(2)(b) Richmond County, abused his authority as a member of the New York City Police Department, in that he threatened to damage § 87(2)(b) physical property, to wit: her apartment door, without sufficient legal authority.	DISMISSED	

DC Brubino
FIRST DEPUTY COMMISSIONER

10/26/23
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

11/2/23
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner October 25, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-24595 against Detective Roberto Pagan, Tax #946089, with the recommendation that the Charges and Specifications against Detective Pagan be dismissed. It is further recommended that Detective Pagan receive a Schedule "A" Command Discipline and forfeit five (5) vacation days. Assistant Deputy Commissioner, Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement. **RECOMMEND APPROVAL.**

TIK/pk

DC Kinsella
Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED

Edward A. Caban
NOV 02 2023
EDWARD A. CABAN
POLICE COMMISSIONER